



The ABBA Initiative, OPC

Unit #12 2F E-Max Building
Block 71 Lot 5 Phase 4 Xavier Estates
Masterson Avenue, Upper Balulang
Cagayan de Oro City, Philippines 9000

YAHSHUA Work From Anywhere (WFX) Agreement With Waiver of Liability

BE IT KNOWN TO EVERYBODY THAT:

This Work From Anywhere (WFX) Agreement With Waiver of Liability (the “Agreement”) is entered into this , in the City of Cagayan de Oro, by and between:

THE ABBA INITIATIVE, OPC., a stock corporation duly organized and registered under the laws of the Philippines, with principal address at 3501 Loyola Drive, Phase 2, Xavier Estates, Cagayan de Oro City 9000, hereinafter referred to as the “Employer”;

- and -

_____, of legal age, _____, single/married, and
a resident of _____, hereinafter referred to as the “Employee”.

The Employer and Employee agree to enter into this Agreement in accordance with the following terms:

This Agreement shall take effect immediately and shall be co-terminus with the Employee’s employment unless otherwise cancelled in accordance with the terms of this agreement.

1. Definitions

Work From Anywhere (WFX) arrangement is an arrangement wherein the Employee is carrying out his/her tasks where resources and the defined workspace specifications are available, as such, the employee is not limited to his/her home only.

Home is defined as the place where one lives permanently, especially as a member of a family or household.

2. WFX and WFH Requirements

To ensure that the Employee and his/her team’s performance will not suffer in WFX arrangements, the Employee shall:

- a. Appropriate a quiet and distraction-free working space;*
- b. Ensure that the internet connection is 15 mbps;*
- c. Dedicate their full attention to their job duties during working hours; 1*



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d. Adhere to break and attendance schedules agreed upon with their manager; and e. Ensure schedules overlap with those of their team members for as long as is necessary to complete their job duties effectively.

If the Employee is at home, the Work From Home Workspace Specification shall prevail as follows:

- a. Workspace of at least 1.5m x 2.5m;*
- b. Work table within the workspace that is half foot higher than the knee when sitting down;*
- c. Work chair, preferably ergonomic;*
- d. A nearby light source either artificial or natural;*
- e. A nearby fan or air conditioning;*
- f. In the absence of a fan or air conditioning, a nearby functional window; and*
- g. Working laptop/PC.*

To ensure the consistency of the workspace, the Employee shall use his/her workspace as the background of his/her time-in and time-out. This will serve as HR's basis for the current state of the workspace.

As such, the Employee is responsible for creating the Employee's conducive workspace in response to the basic requirements set above for the Employee to perform the job properly.

The Employer shall not be liable with regard the temperature or ventilation of the Employee's workplace or its structural solidarity and its fire safety and evacuation procedure.

3. Attendance

The Employee agrees to time-in at 8:30 A.M. and time-out at 5:30 P.M., on all working days, except Holidays. The applicable Holidays will be based on Cagayan de Oro City (CDO), Philippines Holiday schedules, with CDO being the Employer's base of operations.

4. Company Assets

The Employee may be provided with any and all necessary equipment, which are company assets, needed to perform assigned duties as described to the Employee by the Employee's supervisor or manager. Without prior notice, the Employer may request to inspect the provided equipment as well as the location where the equipment is located.

Personal equipment used by the Employee is subject to equal scrutiny when used for work.



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5. Health and Safety

The Employer assumes no liability for damages or injuries sustained in the Employee's workspace outside the agreed working hours, or any loss or destruction that may occur to the Employee's home.

The Employer may be liable for injuries or illness that may occur during the agreed upon work hours, provided that the Employee has passed the necessary training requirements provided by the Employer and has consistently implemented the prescribed health and safety protocols. The Employee's working hours shall conform to a schedule agreed upon by the Employee and the Employee's supervisor or manager.

In connection, liability in so far as health and safety is concerned shall be limited to the work assigned, considering the nature of the work, its complexity, and whether the Employee has the necessary competence to carry out the task.

6. Reimbursement

The Employer shall not be held responsible for any costs incurred beyond the Employee's agreed compensation package for any reason.

This may include, but not be limited to board and lodging, travel and transportation for non-work related activities, damages to equipment like mobile phone, laptop, or PC, and other personal items which the Employee may use for work.

7. Online Meetings

The Employee agrees to meet periodically as required by the Employer, regardless of the Employee's location. This shall include the President's Monthly Update, Weekly Huddle, Weekly Meeting, Daily SCRUM, and other company meetings and activities. The Employee will, during that meeting, prepare all work requirements and will cover any and all meeting requirements.

8. Performance Evaluation and Assessment

The Employee shall be subject to a monthly, and as needed, an annual performance review.

9. Confidentiality, Privacy and Security

Section 5. Confidential Information in the Employment Agreement signed by the Employee is deemed incorporated in this Agreement. In addition, the Employee shall adhere to and observe the Data Privacy Act of 2012 while performing the Employee's work.



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10. Jurisdiction

Any legal action or proceeding arising out of this Agreement, shall be filed in Cagayan de Oro City, Philippines. The prevailing party in such action or proceeding shall be entitled to recover from the other party reasonable expenses, attorney's fees and costs incurred. The Employer may terminate this Agreement at any time upon reasonable notice.

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11. Waiver of Liability

This Agreement releases the Employer from all liability relating to damages, injuries, or loss that may occur during voluntary activities performed by the Employee, especially traveling to and from his/her choice of workplace. By signing this Agreement, the Employee agrees to hold the Employer entirely free from any liability, including financial responsibility for injuries incurred, regardless of whether injuries are caused by negligence. As such, the Employer is not liable for loss, destruction or injury that may occur in or to the Employee's workplace. This includes family members, visitors, or others that may become injured within the Employee's workplace during the incident.

The Employee agrees to take responsibility for any or all damages, injury, or loss that may result from this Agreement, including loss or damage to Employer-provided equipment.

The Employee acknowledges the risks involved in voluntary activities. Additionally, the Employee acknowledges that the Employee does not have any conditions that will increase the Employee's likelihood of experiencing damages, injuries, or loss while engaging in the said voluntary activity.

By signing below, the Employee forfeits all rights to bring a suit against the Employer for the above-stated reasons.

12. Voluntary Activities

Voluntary activities includes all activities not related to the Employee's function and is not limited to the use of personal equipment, vehicle, assets, etc. to carry out or accomplish tasks for the Employer, working remotely outside of the Employee's home like cafes, co-working spaces, or homes of other YAHSHUAns, and allowing other YAHSHUAns to work in the Employee's residence.

The following are scenarios covered in this Section:



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- a. Voluntary use of personal transport (motorbike, car, etc.) to carry out tasks. In reference to Section 5. Health and Safety, the Employer shall only cover the liability for the Employee in the event of untoward incidents during working hours. As such, the Employer shall not be liable for the personal transport which the Employee volunteered to use.
- b. Voluntary gathering. The Employer shall not be liable for the health and safety of employees who gather voluntarily and without explicit instruction from the authorized officer of the Employer.
- c. Use of personal assets (mobile phone, laptop, PC, etc.) to carry out tasks. In the Work from Home setup, the Employee is expected to provide the necessary equipment as the Employee's job description sees fit. As such, the Employee may use these equipment for personal use as well. However, the Employer shall not be held liable for loss, damage or injury on these personal assets.

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13. Termination of Prior Agreements

This Agreement terminates and supersedes as of the Effective Date any and all prior agreements and understandings between the parties with respect to the Work From Home Agreement With Waiver of Liability.

14. Miscellaneous

The Employer shall provide the necessary training and information which includes, and is not limited to proper work set-up, health and wellness, data privacy and protection, fire safety and protection to reinforce and uphold the requirements stated in this Agreement.

IN WITNESS WHEREOF, the parties have hereunto affixed their signatures on the date and place first stated above.

Signed by:

Employee

Signature over Printed Name

RONNEL E. BAYRON, CPA

CEO

The Abba Initiative, OPC



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ACKNOWLEDGEMENT

Republic of the Philippines)

City of Cagayan de Oro) s.s.

BEFORE ME, this _____ day of _____, 20____ in the City of Cagayan de Oro, Philippines personally appeared the following:

Ronnel E. Bayron, Res. Cert. No. _____ issued at City of Cagayan de Oro, Philippines
on _____.

_____, Res. Cert. No. _____ issued
at _____, Philippines on _____.

Known to me to be the same persons who executed the foregoing instrument, and
they acknowledged to me that the same is their free and voluntary act.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my notarial seal,
the day, year and place above written.

Doc. No. ; _____

Page No. ; _____

Book No. ; _____

Series of . _____